

Amendment No. 1 to HB2341

Crawford
Signature of Sponsor

AMEND Senate Bill No. 2452*

House Bill No. 2341

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 57-4-102(31), is amended by adding the following as a new subdivision (F):

(F) "Premises," when:

(i) Referring to one (1) or more establishments licensed under this chapter that are located within or adjacent to a premises for which a license has been issued under subdivision (18) or (37) in conjunction with an event approved by a temporary special event zone ordinance in a county having a metropolitan form of government with a population in excess of five hundred thousand (500,000), according to the 2020 federal census or any subsequent federal census;

includes the area described in subdivision (31)(F)(i);

(ii) Consumption of alcoholic beverages and beer on the premises as defined in this subdivision (31)(F) is authorized:

(a) For events licensed under subdivision (31)(F)(i) and authorized under a temporary special event zone ordinance; and

(b) For the duration of an event approved by the commission under subdivision (31)(F)(i). In order for an alcoholic beverage or beer sold by a licensed establishment to be consumed by customers outside its regular licensed premises in the larger event premises, the alcoholic

beverage or beer must be in an event-designed to-go cup that is purchased from the designated event permit holder;

(iii) Notwithstanding this subdivision (31)(F), only the organization named in the temporary special event zone ordinance and county permit application may sell an event-designed to-go cup to the licensed establishments described in subdivision (31)(F)(i);

(iv) For purposes of consumption on the premises as defined under this subdivision (31)(F), an alcoholic beverage or beer must be in an event-designed to-go cup that is labeled in a manner that identifies the licensed establishment that sold the alcoholic beverage or beer at retail to a patron; and

(v) As used in this subdivision (31)(F), "event-designed to-go cup" means a cup designed by the organization named in the temporary special event zone ordinance and the county permit application, and sold by an establishment licensed under this chapter within the premises approved by the commission pursuant to this subdivision (31)(F);

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.